

Supplemental Comment of the Obsidian Watch Group

Docket: HHS-OASH-2026-0232

Supplements comment tracking number: mtc-56yj-nmij (submitted 27 August 2026)

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WHY WE ARE SUPPLEMENTING

After filing our comment we obtained and examined the Department's letter of 6 March 2026 from Admiral Brian Christine, Assistant Secretary for Health, to Administrator Terrance C. Cole of the Drug Enforcement Administration, posted to the DEA docket as DEA-2026-1190-0002.

That letter sets out the operative definition of the threshold. It contains an element that does not appear in the Request for Information, in the Federal Register notices, or in any public account of this action that we have located, including our own earlier comment.

We raise it because a criminal prohibition should not take effect while a material term of its scope is absent from public discussion.

THE THRESHOLD IS NOT SOLELY A PERCENTAGE

The definition transmitted to DEA reads, in relevant part:

(A) Any botanical material of the plant *Mitragyna speciosa* ... and contains more than 0.050 percentage of 7-hydroxymitragynine on a dry weight basis, or

(B) Any alternative article to that described in (A), that is:
i. Resulting from synthetic methods and containing 7-hydroxymitragynine present in amounts greater than 0.05 percentage weight/weight, weight/volume, or volume/volume OR GREATER THAN 1.00 MILLIGRAM OF 7-HYDROXYMITRAGYNINE IN THE ARTICLE, or
ii. Material derived from *Mitragyna speciosa* and further processed to manufacture alternative dosage forms such as extracts, concentrates,

processed edibles, or pressed pills, and which may have materials that have been exposed to chemical, thermal, or other methods leading to chemical transformations that result in 7-hydroxymitragynine present in amounts greater than 0.05 percentage ... OR GREATER THAN 1.00 MILLIGRAM

OF 7-HYDROXYMITRAGYNINE IN THE ARTICLE

Subsection (A), raw botanical material, is governed by concentration alone. Subsections (B) (i) and (B)(ii) are governed by concentration OR by an absolute quantity of 1.00 milligram per article, whichever is exceeded first.

Public discussion of this action, including the Department's own Request for Information, has proceeded almost entirely on the basis of a 0.05 percent threshold. The absolute limit has not been part of that discussion.

FOR ORDINARY SERVING SIZES, THE ABSOLUTE LIMIT BINDS FIRST

Using the Department's own figures. FDA's assessment reports leaf 7-hydroxymitragynine content at a mean of 0.01 percent with a maximum of 0.21 percent across 341 consumer-supplied samples (Sharma et al. 2025), and 0.01 to 0.04 percent across commercial products (Kikura-Hanajiri et al. 2009). It reports typical consumption of 1 to 3 grams for 49 percent of users and 4 to 6 grams for 33 percent (Garcia-Romeu et al. 2020).

At those serving sizes, 1.00 milligram is reached at the following concentrations:

1 gram	...	0.1000 percent
3 grams	...	0.0333 percent
5 grams	...	0.0200 percent
6 grams	...	0.0167 percent

A five gram serving reaches the absolute limit at 0.02 percent 7-hydroxymitragynine, which is one fifth of the percentage threshold and within the naturally occurring range the Department itself documents.

THE QUESTION WE CANNOT ANSWER FROM THE TEXT

Subsection (B)(ii) reaches material "further processed to manufacture alternative dosage forms such as extracts, concentrates, processed edibles, or pressed pills." It then adds "and which may have materials that have been exposed to chemical, thermal, or other methods leading to chemical transformations."

Whether that clause is a condition limiting (B)(ii) to chemically altered material, or a description of what such articles may contain, is not clear on the face of the text.

If it is a condition, ordinary leaf capsules and unenhanced extracts remain outside (B)(ii) and are judged under (A) on concentration alone.

If it is a description, ordinary leaf capsules, tablets and extracts fall within (B)(ii), the 1.00 milligram absolute limit applies to them, and a substantial share of unenhanced botanical product at ordinary serving sizes would exceed it.

We do not assert that leaf products are captured. We assert that the text does not resolve the question, and that the difference between those two readings is the difference between a targeted restriction on manufactured concentrates and a general prohibition on kratom.

REQUESTED ACTIONS

1. State on the record whether subsections (B)(i) and (B)(ii) apply to

unenhanced botanical dosage forms, including plain leaf capsules, tablets and water or ethanol extracts prepared without chemical modification.

2. State the basis for the 1.00 milligram absolute limit, which does not appear

in the scientific assessment supporting the percentage figure, and identify the data or reasoning from which it derives.

3. State how the absolute limit is to be measured and enforced with respect to an

"article," including whether "article" means a single dosage unit, a container, or a labeled serving, and the measurement uncertainty of the analytical method at that quantity.

4. Publish the operative definition in full, with both limits, in any subsequent

notice, so that the public comment process addresses the rule as written rather than a partial description of it.

Respectfully submitted,

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Supporting documents, including the OCR'd 6 March 2026 letter: [github.com/jpuckett11/
ObsidianGroup_CaseSevenfold](https://github.com/jpuckett11/ObsidianGroup_CaseSevenfold)